



CHAPTER xxxvi.

An Act to confirm certain Provisional Orders of the A.D. 1901.
Local Government Board for Ireland relating to the
Urban Districts of Londonderry and Kilkenny and
the Rural Districts of Cork Roscommon Boyle No. 1
and Mountmelick No. 1. [2nd July 1901.]

WHEREAS the Local Government Board for Ireland (herein-
after referred to as "the Local Government Board") have
made the Provisional Orders set forth in the schedule hereto under
the Public Health (Ireland) Acts 1878 to 1896 :

And whereas it is requisite that the said Orders should be
confirmed by Parliament and that the provisions herein contained
should be enacted with reference to certain of those Orders :

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders
in schedule
confirmed.

2.—(1.) The Corporation of Londonderry (herein-after referred to as "the Corporation") shall not under the powers of the Londonderry Order 1901 (in this section referred to as "the Order") purchase or acquire ten or more houses which after the passing of this Act have been or on the fifteenth day of December last were occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers unless and until— Provisions as
to houses of
labouring
class.

(a.) They have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the

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fifteenth day of December last or for such number of persons as the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(b.) They have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2.) The approval of the Local Government Board to any such scheme may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may approve either absolutely or conditionally of any modifications in the scheme.

(3.) Every such scheme shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed and fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced. Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may deem fit.

(4.) Any provisions of any such scheme and any conditions subject to which the Local Government Board may have approved of any such scheme or of any modifications thereof or subject to which the Local Government Board may have dispensed with the above-mentioned requirements shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

(5.) If the Corporation acquire or appropriate any house for the purpose of the Order in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house in contravention of the requirements thereof they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce the said penalty.

(6.) For the purpose of carrying out any scheme under this section the Corporation may appropriate any lands for the time being belonging to them or which they have power to acquire:

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Provided that nothing in this sub-section shall relieve the Corporation from the necessity of obtaining the approval of the Local Government Board for such appropriation or use of their corporate land as would require such approval under any general Act.

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—

(7.) Subject to the provisions of this section the Corporation and the Local Government Board and their inspectors shall have and may exercise for any purpose in connexion with any scheme under this section all or any of the powers vested in them by the Public Health (Ireland) Acts 1878 to 1896 in the same manner in every respect as if the preparation and carrying out of such scheme were one of the general purposes of the said Acts. Provided that all lands on which any buildings have been erected or provided by the Corporation in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this provision. Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this sub-section subject to such conditions (if any) as they may deem fit.

(8.) The Corporation shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation making and confirmation of any Provisional Order in pursuance of this section and any expenses incurred by the Local Government Board in relation to any inquiries under this section including the expenses of any witness summoned by the inspector holding the inquiry and a sum to be fixed by the Local Government Board not exceeding three guineas a day for the services of such inspector.

3. The Urban District Council of Kilkenny shall not under the powers of the Kilkenny Order 1901 purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or will be subsequently so occupied.

Restriction
of power to
take houses
of labouring
class.

4. For the purposes of sections two and three of this Act the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own families and persons

Definition
of labouring
class.

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A.D. 1901. — other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title. 5. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 2) Act 1901.

SCHEDULE.

A.D. 1901.

COUNTY BOROUGH OF LONDONDERRY.

*Provisional Order to enable the Urban Sanitary Authority for Londonderry.
the County Borough of Londonderry to put in force the
Compulsory Clauses of the Lands Clauses Acts.*

WHEREAS the Mayor Aldermen and Burgesses of the County Borough of Londonderry acting by the town council (in this Order referred to as "the Corporation") as the urban sanitary authority for that Borough require to purchase and take the lands described in the Schedule hereto for the purpose of widening enlarging or otherwise improving certain streets in the said Borough :

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by Section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

41 & 42 Vict.
c. 52.

1. The Corporation shall be empowered to put in force with reference to the lands described in the Schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by Section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.
2. The costs and expenses of the Corporation and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the Corporation as part of their expenses under the Public Health (Ireland) Acts 1878 to 1896.
3. This Order may be cited as the Londonderry Order 1901.

59 & 60 Vict.
c. 54.

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Londonderry.

SCHEDULE.

County Borough of LONDONDERRY.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1A	House and yard in Foyle Street Bridge Street and Oakum Alley.	Representatives of S. Jackson.	- - -	James Bradley.
2	House and yard in Bridge Street.	ditto - -	- - -	Joseph Bradley.
3	House in Bridge Street.	ditto - -	- - -	Thomas Nevin.
4	Ditto - -	ditto - -	- - -	Wm. McGirr.
3A 4A	Yard in Bridge Street	ditto - -	- - -	Thomas Nevin and William McGirr.
5	House in Bridge Street.	James Major Boggs and wife Wm. T. Johns Charlotte Boggs and Connolly Wm. Lecky Browne Lecky.	The Governors of Gwyn and Young's Endowment.	Peter Hutton.
6	Ditto - -	ditto - -	ditto - -	Michael Ramsay Samuel Cox.
7	Ditto - -	ditto - -	ditto - -	Daniel McCay and Samuel Cox.
8	House in Oakum Alley	ditto - -	ditto - -	James Martin and Wm. McGirr.
9	House in Foyle Street and Oakum Alley.	ditto - -	ditto - -	Patrick McGinley.
5A 6A 7A 8A 9A	Yard in Foyle Street and Oakum Alley.	ditto - -	ditto - -	Peter Hutton Daniel McCay James Martin Wm. McGirr Patrick McGinley and Michael Ramsay.
10	House and yard in Foyle Street.	ditto - -	ditto - -	John McGirr.
11	Houses (in ruins) and yards in Foyle Street Bridge Street and Foyle Alley.	Hardress E. Waller Robert Knox and James Stewart Trustees of George Skipton.	- - -	Unoccupied.
12	House and yard in Foyle Street.	ditto - -	- - -	Jas. McClenaghan.
13	Ditto - -	ditto - -	- - -	John Duffy.
14	House in Foyle Street	Connolly Wm. Lecky Browne Lecky and Wm. F. Bigger.	Magdalen Williams	Patrick Williams.
15	House in Foyle Street and Rookery Lane.	ditto - -	ditto - -	Magdalen Williams.
14A 15A	Yard in Foyle Street and Rookery Lane.	ditto - -	ditto - -	Patk. Williams and Magdalen Williams.
16	House and yard in Rookery Lane.	ditto - -	- - -	Mary Jane McDaid.
17	Ditto - -	ditto - -	- - -	Chas. Cavanagh.
18	House in Bridge Street	Bessie McClintock -	- - -	Catherine Kelly.
19	Ditto - -	ditto - -	- - -	Patrick Graham.
18A 19A	Yard in Bridge Street	ditto - -	- - -	Catherine Kelly and Patrick Graham.

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 ———
 Londonderry.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1b	Wall separating Kennedy Place from Kennedy Street.	Thomas S. Magee Alexander McVicker Thomas C. Wylie Joseph Love and Reps. Alexander Ayton.	—	—
1c	Wall and garden in Dunfield Street and Fountain Hill.	G. B. Crawford	- - - -	John Barr.

Given under the Seal of Office of the Local Government Board for Ireland this Twenty-third day of April One thousand nine hundred and one.

(L.S.)

H. A. ROBINSON.

URBAN DISTRICT OF KILKENNY.

Provisional Order to enable the Urban District Council of Kilkenny to put in force the Compulsory Clauses of the Lands Clauses Acts.

WHEREAS the Urban District Council of Kilkenny (in this Order referred to as "the District Council") require to purchase and take the lands described in the Schedule hereto for the purpose of providing receptacles for the temporary deposit of dust ashes and rubbish:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to us by Section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The District Council shall be empowered to put in force with reference to the lands described in the Schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by Section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them. 41 & 42 Vict. c. 52.
2. The costs and expenses of the District Council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the District Council out of the rate leviable under Section 60 of the Towns Improvement (Ireland) Act 1854 as amended by any enactment. 59 & 60 Vict. c. 54.
3. This Order may be cited as the Kilkenny Order 1901. 17 & 18 Vict. c. 103.

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A.D. 1901.

Kilkenny.

SCHEDULE.

Urban District of KILKENNY.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
1	Part of Townland of Bishopsmeadows containing 2r. or thereabouts situate in the Parish of St. Canice.	Reverend Waller De Montmorency.	John Morris.
2	Part of Townland of Pennefatherslot containing 1r. 30p. or thereabouts situate in the Parish of St. John.	Fras. R. Langton - -	Anastatia Broderick.

Given under the Seal of Office of the Local Government Board for Ireland this Twenty-seventh day of April One thousand nine hundred and one.

(L.S.)

H. A. ROBINSON.

RURAL DISTRICT OF CORK.

THE DOUGLAS BURIAL GROUND.

Cork Rural. Provisional Order to enable the Council of the Rural District of Cork to put in force the Compulsory Clauses of the Lands Clauses Acts.

WHEREAS the council of the rural district of Cork (in this Order referred to as "the Rural District Council") being the burial board of the district require to purchase and take the lands described in the Schedule hereto for the purpose of providing an addition to the Douglas Burial Ground situate within their district :

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by Section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect viz. :—

1. The Rural District Council acting as the burial board of the district shall be empowered to put in force with reference to the lands described in the Schedule hereto and for the purposes aforesaid the powers of the Lands Clauses Acts as amended by section eight of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

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2. The costs and expenses of the Rural District Council and the Local Government Board incurred in respect of the application for the preparation making and confirmation of this Order shall be paid by the Rural District Council and the money required for that purpose shall be supplied by the county council of Cork in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the Rural District Council. A.D. 1901.
Cork Rural.
61 & 62 Vict.
c. 37.
3. This Order may be cited as the Douglas Burial Ground Order 1901.

SCHEDULE.

County of CORK.

No. on deposited Plan.	Description of Land.	Owner or reputed Owner.	Lessee or reputed Lessee.	Occupier.
		PARISH OF CARRIGALINE.		
	Piece of land in the townland of Douglas containing 1 acre or thereabouts and coloured red on the deposited plan.	Henry Osborn Bayley	Mary Reeves	Frances Barry.

Given under the Seal of Office of the Local Government Board for Ireland this Eighth day of March One thousand nine hundred and one.

(L.S.)

H. A. ROBINSON.

RURAL DISTRICT OF ROSCOMMON.

Provisional Order to enable the Council of the Rural District of Roscommon to put in force the Compulsory Clauses of the Lands Clauses Acts.

Roscommon Rural.

WHEREAS the council of the rural district of Roscommon (in this Order referred to as "the District Council") require to purchase and take the lands right of way and other premises described in the Schedule hereto for the purpose of providing a supply of water for the town of Roscommon and for providing access to such lands and premises :

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by Section 203 of the Public Health (Ireland) Act 1878 and of any other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. The District Council shall be empowered to put in force with reference to the lands right of way and other premises described in the Schedule

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*Roscommon
Rural.*

59 & 60 Vict.
c. 54.

hereto and for the purposes aforesaid the powers of the Lands Clauses Acts as amended by Section eight of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. The expression "land" in the Lands Clauses Acts shall for the purposes of this Order include the lands right of way and other premises described in the Schedule hereto.
3. The costs and expenses of the District Council and of the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the District Council and the money required for that purpose shall be supplied by the County Council of Roscommon in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the District Council.
4. This Order may be cited as the Roscommon Rural Order 1901.

61 & 62 Vict.
c. 37.

SCHEDULE.

County of ROSCOMMON.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
		PARISH OF ORAN.		
1	Piece of grazing or bog land including spring containing 1r. 24p. or thereabouts.	Thomas S. Coppinger and George W. Waters.	Patrick Conry and Florence Conry.	Patrick Conry and Florence Conry.
46	Ditto - - -	ditto - - -	ditto - - -	ditto.
47	Right of way and access to both springs on foot and with horses and carts when required from the public road at Emlaghmore through the entrance gate into and over the avenue and lands in the occupation of Patrick Conry and Florence Conry between the points marked A B and C on plan.	ditto - - -	ditto - - -	ditto.

Given under the Seal of Office of the Local Government Board for Ireland this Twenty-third day of April One thousand nine hundred and one.

(L.S.)

H. A. ROBINSON.

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RURAL DISTRICT OF BOYLE No. 1. A.D. 1901.

Provisional Order to enable the Council of the Rural District of Boyle No. 1 to put in force the Compulsory Clauses of the Lands Clauses Acts. *Boyle No. 1 Rural.*

WHEREAS the council of the rural district of Boyle No. 1 (in this Order referred to as "the district council") require to purchase and take the lands described in the schedule hereto for the purpose of providing a water supply for the town of Boyle in their district :

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :— 41 & 42 Vict. c. 52.

1. The district council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of land otherwise than by agreement or any of them. 59 & 60 Vict. c. 45.
2. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Roscommon in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council. 61 & 62 Vict. c. 37.
3. This Order may be cited as the Boyle No. 1 Rural Order 1901.

SCHEDULE.

County of ROSCOMMON.

Nos. on deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Part of townland of Cashelfinoge or Lugnamuddagh containing 1a. and 1r. or thereabouts in the parish of Boyle and coloured red on the deposited plan.	The Trustees of the Estate of the late Col. King-Harman.	Philip C. P. MacDermot.	Philip C. P. MacDermot.

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*Boyle No. 1
Rural.*

Nos. on deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Part of townland of Carrowmore containing 8p. or thereabouts in the parish of Ardcarne and coloured red on the deposited plan.	The Trustees of the Estate of the late Col. King-Harman.	Very Rev. Dean Francis Burke.	Richard Gardiner.
1 and 2	Part of townland of Reycrofts Park containing 2p. or thereabouts in the parish of Ardcarne and coloured red on the deposited plan.	Ditto - -	ditto - -	Very Rev. Dean Francis Burke.
1	Part of townland of Carrownagashel containing 1p. or thereabouts in the parish of Ardcarne and coloured red on the deposited plan.	Ditto - -	George Vaugh -	George Vaugh.

Given under the Seal of Office of the Local Government Board for
Ireland this twenty-third day of April One thousand nine
hundred and one.

(L.S.)

H. A. ROBINSON.

RURAL DISTRICT OF MOUNTMELICK No. 1.

MOUNTMELICK BURIAL GROUND.

*Mountmelick
No. 1 Rural.*

*Provisional Order to enable the Council of the Rural District of
Mountmelick No. 1 to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

WHEREAS the council of the rural district of Mountmelick No. 1 (in this Order referred to as "the district council") being the burial board of the district require to purchase and take the lands in the schedule hereto for the purpose of providing a new burial ground for the town of Mountmelick in their district and for other portions of their district adjoining the said town :

41 & 42 Vict.
c. 52.

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. The district council acting as the burial board of the district shall be empowered to put in force with reference to the lands described in the

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schedule hereto and for the purpose aforesaid the powers of the Lands
Clauses Acts as amended by section 8 of the Public Health (Ireland)
Act 1896 with respect to the purchase and taking of lands otherwise
than by agreement or any of them.

A.D. 1901.
Mountmelick
No. 1 Rural.
59 & 60 Vict.
c. 54.

2. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Queen's County in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.
3. This Order may be cited as the Mountmelick Burial Ground Order 1901.

61 & 62 Vict
c. 37.

SCHEDULE.

Parish of ARDEA in the QUEEN'S COUNTY.

No. on deposited Plan.	Description of Lands.	Owners or reputed Owners.	Occupiers.
1A	Part of field in the townland of Acragar containing 4a. or thereabouts and coloured red on the deposited plan.	Edward Pim and Albert Pim	Edward Pim and Albert Pim.

Given under the Seal of Office of the Local Government Board for Ireland this twenty-fifth day of April One thousand nine hundred and one.

(L.S.)

H. A. ROBINSON.

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